



CHAPTER iv

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Stromness Harbour (Guarantee).

[27th July 1955.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Stromness Harbour (Guarantee) Order Confirmation Act 1955.

Short title.

SCHEDULE

STROMNESS HARBOUR (GUARANTEE)

Provisional Order to confer powers on the town council of Stromness for the granting of a guarantee of a loan to the Commissioners for Stromness Harbour to make provision for the levying of a special harbour rate and for other purposes.

WHEREAS by the Orkney Piers and Harbours Act 1872 (hereinafter referred to as "the Act of 1872") it was provided that Stromness Harbour should be placed under the control of a special Board of Commissioners in the Act of 1872 called "the Stromness Harbour Commissioners" and that such Commissioners should subject to the provisions of the Act of 1872 have exclusive jurisdiction control and management of the Stromness Harbour:

And whereas by the Stromness Harbour Act 1897 the powers duties rights authorities and jurisdictions of the Stromness Harbour Commissioners were transferred to and vested in the Commissioners incorporated by that Act (hereinafter called "the Commissioners"):

And whereas by the Stromness Harbour Order 1954 the Commissioners were authorised to carry out certain works:

And whereas it is necessary for the Commissioners to borrow moneys for the execution of the said works:

And whereas it is expedient that the town council of Stromness (hereinafter called "the town council") should be authorised to guarantee as and by way of collateral security as hereinafter provided such sums and on such conditions as are hereinafter prescribed towards the payment of the annual interest and instalments of principal of the moneys to be borrowed for the purposes aforesaid and to levy a rate for the purposes of the said guarantee:

And whereas it is expedient that the other provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title and
citation.

1.—(1) This Order may be cited as the Stromness Harbour (Guarantee) Order 1955.

(2) The Stromness Harbour Act 1897 the Stromness Harbour Order 1954 and this Order shall be construed and read together as one Order except so far as the same may be inconsistent with or repugnant to the purposes thereof.

Commencement
of Order.

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming the same which date is hereinafter referred to as "the commencement of this Order."

3. In this Order the several words and expressions to which meanings are assigned by the Acts and Orders wholly or partially incorporated with this Order have the same respective meanings unless there be something in the subject or context repugnant to such construction and in this Order unless the context otherwise requires—

Interpretation.

“the Act of 1897” means the Stromness Harbour Act 1897;

“the burgh” means the burgh of Stromness;

“the Commissioners” means the Stromness Harbour Commissioners as constituted and incorporated by the Stromness Harbour Act 1897;

“the harbour undertaking” means the undertaking of the Commissioners in connection with the harbour and the works;

“the Order of 1954” means the Stromness Harbour Order 1954;

“the town council” means the provost magistrates and councillors of the burgh.

4. The town council may and they are hereby authorised to guarantee payment of the principal and interest on any moneys authorised to be borrowed by the Commissioners for the purposes of the Order of 1954 to the extent of ten per centum of the total cost of the said purposes or the sum of seven thousand five hundred pounds whichever amount is the lesser and the interest thereon.

Town council may guarantee loan.

5. In order to ensure the due and regular payment of the instalments of principal and interest for the repayment of the moneys so borrowed as aforesaid the town council may and they are hereby authorised to guarantee to the extent aforesaid the said interest and annual payments and instalments on the security of the rates and revenues of the town council and of the guarantee rate authorised by this Order to be levied by the town council.

Town council may guarantee instalments etc. on security of guarantee rate.

6.—(1) If in any year the revenues of the harbour undertaking are insufficient after providing for the necessary expenses of working management and maintenance to meet the charges for interest and the instalments of principal annually payable for the redemption of moneys borrowed as aforesaid the Commissioners shall (in the event of the town council having granted the said guarantee authorised by this Order) by writing under the hand of the clerk require payment from the town council of such a sum as may represent the amount of such deficiency which deficiency shall be conclusively instructed and ascertained by the abstract of the accounts of the Commissioners as audited and certified by the auditor.

Payment by town council under guarantee to be made on requisition by Commissioners.

(2) The town council shall within one month after receipt of such requisition pay the amount of such deficiency to the Commissioners and in default of payment the Commissioners or the persons from whom the Commissioners have borrowed money may recover from the town council the amount due by action in any court of competent jurisdiction but only to the extent of the amount authorised in the section of this Order of which the marginal note is “Town council may guarantee loan.”

Harbour
guarantee rate.

7. For the purposes of and in security of the guarantee given by the town council under the authority of this Order the town council may from time to time fix impose and levy such a rate to be termed "the harbour guarantee rate" as is necessary to pay the amount of the said deficiency.

Assessment and
levying of rate.

8.—(1) The harbour guarantee rate shall be imposed and levied by the town council on and from the owners and occupiers of all lands and heritages within the burgh according to the valuation roll in force therein for the time being in equal proportions either separately from or along with and in the same manner as the other assessments leviable by the town council are imposed and levied by them within the burgh.

(2) All the powers enactments and provisions contained in the Local Government (Scotland) Act 1947 with respect to the levying payment and recovery of the assessments thereby authorised to be levied on and from the owners or the occupiers of lands and heritages shall be and are hereby made applicable to the levying payment and recovery of the harbour guarantee rate by this Order authorised in the same manner as if that rate had been authorised to be levied under the authority of the said Local Government (Scotland) Act 1947.

Payments by
town council
to be a debt
owing by
Commissioners.

9. Any sums paid by the town council under or in virtue of the provisions of this Order in respect of the said guarantee shall with the accumulated interest thereon at the rate of four pounds per centum per annum be a debt owing to the town council by the Commissioners and shall be a charge upon and be paid to the town council out of the surplus revenues (if any) of the harbour undertaking in subsequent years to that in which the said sums have been paid.

Costs of Order.

10. All costs charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the Commissioners.

Table of Statutes referred to in this Act

Short title	Session and chapter
Orkney Piers and Harbours Act 1872	35 & 36 Vict. c. lxxvii.
Stromness Harbour Act 1897	60 & 61 Vict. c. cxxxi.
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5 & 1 Edw. 8 c. 52.
Local Government (Scotland) Act 1947	10 & 11 Geo. 6 c. 43.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 6d. net

PRINTED IN GREAT BRITAIN

(38536)

Stromness Harbour (Guarantee) Order Confirmation Act, 1955

4 ELIZ. 2 Ch. iv

ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

STROMNESS HARBOUR (GUARANTEE)

1. Short title and citation.
2. Commencement of Order.
3. Interpretation.
4. Town council may guarantee loan.
5. Town council may guarantee instalments etc. on security of guarantee rate.
6. Payment by town council under guarantee to be made on requisition by Commissioners.
7. Harbour guarantee rate.
8. Assessment and levying of rate.
9. Payments by town council to be a debt owing by Commissioners.
10. Costs of Order.

